

2.

| CASE #      | CASE NAME                                                                | HEARING NAME                                                             |
|-------------|--------------------------------------------------------------------------|--------------------------------------------------------------------------|
| CVME2600110 | PARK VS K. HOVNANIAN'S FOUR SEASONS AT HEMET COMMUNITY ASSOCIATION, INC. | DEMURRER, MOTION TO STRIKE ON 1 <sup>ST</sup> AMENDED COMPLAINT, AND CMC |

**Tentative Ruling:** SUSTAIN the demurrer to the operative First Amended Complaint with 30 days leave to amend. The motion to amend is moot. Continue the CMC to March 2, 2027.

Plaintiff argues that the demurrer was filed too late, more than 30 days after the FAC was served. The rule is that a defendant can demurrer within the same period of time it has to answer the complaint – i.e., *30 days* after service, unless extended by stipulation or court order. (CCP § 430.40(a).) Nonetheless, “[a]n *untimely* demurrer *may* be considered by the court in its discretion.” (Weil & Brown, CPG: Civ. Proc. Before Trial (TRG 2026) § 7:24 citing *Jackson v. Doe* (2011) 192 Cal.App.4<sup>th</sup> 742, 750 [section 430.40 is permissive, not mandatory, because it uses the term “may” rather than “must.”]) “The trial court may exercise discretion so long as its action does ‘not affect the substantial rights of the parties.’ [Citations].” (*Jackson, supra*.)

Here, the FAC was served on 3/6/26. Plaintiff asserts that Defendants had until 4/5/26 to respond to the FAC, which is within 30 days. Plaintiff acknowledges that since the FAC was served by mail, Defendants had an additional five days to respond up until 4/10/26. (CCP § 1005.) Defendants’ demurrer was filed and served on 4/10/26. Thus, the demurrer was timely filed. And even it was not timely filed, the Court has discretion to allow the demurrer to proceed.

Plaintiff also argues that his Second Amended Complaint (SAC) renders the demurrer moot. Notably, on 6/15/26 Plaintiff filed a “Motion to Amend First Amended Complaint” in which he “deletes” all of the causes of action in the FAC and proposes different entirely causes of action. As a result, Plaintiff concedes that his FAC was defective as described by Defendants.

3.

| CASE #      | CASE NAME                    | HEARING NAME                           |
|-------------|------------------------------|----------------------------------------|
| CVME2601780 | CITY OF WILDOMAR VS. ESCOBAR | MOTION TO APPOINT RECEIVER ON PETITION |

**Tentative Ruling:** Continue to December 17, 2026, to allow Respondents a further opportunity to abate the nuisance.

Petitioner City of Wildomar (“Petitioner” or the “City”) alleges that the single-family residence at 33475 Loquat Street contains unsafe public nuisance conditions. These include accumulation of 50 inoperable and dismantled vehicles, outdoor storage and junk, debris, dead and overgrown vegetation, and some unpermitted building structures and alterations. Respondent Jennifer Escobar (“Respondent”) allegedly holds title to the property. Respondents Jose Refugio Camarena, Veronica Vera, and Mark Compos allegedly occupy the property. (collectively, “Respondents.”)

Petitioner filed a Petition for Appointment of a Receiver on 3/18/26. (Health & Saf. Code § 17980.7(c).) Petitioner asserts that the property endangers neighboring homes and the public. Petitioner alleges that code enforcement efforts have been directed at the property owner and

occupants seeking to remediate the property, including the issuance of a formal order to repair or abate on 1/6/25, with a 2/5/25 compliance deadline. Nonetheless, Respondents have not complied. Petitioner asserts that it has afforded Respondents an adequate and reasonable opportunity to rehabilitate the property. It further asserts that has complied with all procedural prerequisites. Petitioner asks to appoint attorney Richardson Griswold as receiver. Petitioner also asks to enjoin Respondents from collecting rents or income from the property, from interfering with the receivership, and from encumbering or transferring any property interest. Petitioner asks the court to authorize the receiver to finance the cost of rehabilitation through first-priority liens against the property.

In response, Respondents argue that they have made substantial progress in correction work, and that the remaining work is underway. Respondents argue that the City commenced sewer construction immediately adjacent to the property that restricted access to the property. Respondents request additional time to complete the remaining work.

On 6/30/26, the court continued the matter to allow Respondents time to work toward code compliance and encouraged the code-enforcement officer to be present on 9/4/26.

Petitioner subsequently declares that as of Mid-August, although progress has been made, the majority of the violations remain substantially unchanged. Petitioner relies on the 8/18/26 inspection, which found about 25 inoperable vehicles remain in the rear yard, along with outdoor storage and debris, 4 unpermitted metal storage containers, an unpermitted large metal carport and patio cover, and an unresolved interior wall. Petitioner further argues that the access limitation cited ended when Loquat Street reopened on 7/3/26. Petitioner also contends that the property is a corner lot that has 4 separate access gates along Lemon Street.

The appointment of a receiver is a drastic remedy to be utilized only in “exceptional cases.” As such, a receiver should not be appointed unless absolutely essential. (*City & County of San Francisco v. Daley* (1993) 16 Cal.App.4th 734, 744.) A receiver may only be appointed pursuant to the statutes that permit a receivership. (*Marsch v. Williams* (1994) 23 Cal.App.4th 238, 246-248.)

Here, Health and Safety Code section 17980.7, subdivision (c), permits appointment of a receiver. It permits, but does *not* require, appointment of a receiver after an owner fails to comply within a reasonable time with an order issued under Health and Safety Code section 17980.6. (Health & Saf. Code § 17980.7(c).)

Procedurally, the City issued its Notice and Order on 1/6/25 and directed respondents to complete rehabilitation by 2/5/25. (Second Supp. Sanchez Decl., ¶ 3.) It then posted and mailed its three-day notice of intent to file receivership on 2/11/26, before filing the Petition on 3/18/26. (Petition, ¶ 27.) The court continued the original hearing in May and again continued the matter on 6/30/26. At the 6/30/26 hearing, Respondent requested a good faith opportunity for voluntary remediation.

Substantively, the City presents evidence of unresolved violations. The 8/18/26 inspection documented about 25 dismantled or inoperable vehicles in the rear yard, another inoperable vehicle in the driveway, vehicle parts, discarded furniture, trash, debris, and containers holding unknown substances or fluids stored near the front gate. (Second Supp. Sanchez Decl., ¶¶ 12-19, 22.) Four unpermitted metal storage containers, the unpermitted large carport structure, and the

unpermitted patio cover remained. (*Id.*, ¶¶ 17.) No permit application, plan check, or inspection has occurred since the Notice and Order. (*Id.*, ¶¶ 18.) Also, Respondents had not shown proof that the interior unpermitted interior wall alteration had been removed or legalized. (*Id.*, ¶¶ 19.)

But the record also shows remedial work. The City acknowledges that Respondents have completed weed abatement, repaired the rear deck and stairs, repaired the swamp cooler, cleared enough of the rear yard to create walking paths, and reduced the number of inoperable vehicles in the driveway and front portion of the property. (Supp. Sanchez Decl., ¶ 7; Second Supp. Sanchez Decl., ¶¶ 15, 21.) Those efforts represent progress.

The City cites *City of Santa Monica v. Gonzalez* (2008) 43 Cal.4th 905, 925-926, to emphasize the Legislature's intent to enhance local agencies' ability to remedy substandard housing that endangers the health and safety of the community. That authority supports the availability of a receivership remedy. It does not, however, *require* an immediate appointment.

The City also principally relies on *City of Crescent City v. Reddy* (2017) 9 Cal.App.5th 458. *Reddy* holds that Health and Safety Code section 17980.7 does not require exhaustion of "less invasive alternatives" before a receiver may be appointed. (*Id.* at 466.) But *Reddy* involved a receivership request *after* entry of a stipulated judgment requiring correction of specified violations within 6 months, coupled with prolonged noncompliance with an order requiring abatement. (*Id.* at 461-62.) The differing posture here, that is, the recent partial correction, and the nearby construction which may have impeded Respondents' cleanup efforts, should allow for a further continuance without disregarding *Reddy*.

Therefore, the Court will continue the matter for 90 more days to allow Respondents a further opportunity to abate the nuisance, subject to conditions such as documentation of hauling, vehicle-removal, and permit efforts.

On a side note, the Proposed order requires revision: First, it contains cut & paste errors such as referring to the "Rialto Municipal Code," the "Rialto Police Department," and the "San Bernardino County Sheriff," even though this matter concerns property in Wildomar, Riverside County. (Proposed Order, ¶¶ C.5, C.9, E.6.) Second, the order authorizes payment of the City's open-ended, *unspecified* attorney fees and costs from the receivership estate. (*Id.*, ¶E.4.) Instead, payment shall be determined through a motion or the receiver's interim or final accounting. Third, ¶C.10 and ¶C.11 authorize unlimited borrowing "as necessary" and automatic super priority liens, while ¶E.1 authorizes an initial \$30,000 certificate of indebtedness. (*Id.*, ¶¶ C.10, C.11, E.1.) If ultimately necessary, the Court will only authorize the specified initial amount, if supported, and require the receiver to come back and ask the court for more, if needed, with no super priority liens—unless it becomes necessary.